



United States
Attorney's Office
District of Massachusetts



PRESS RELEASE

Final Defendant in eBay Cyberstalking Case Sentenced

Thursday, July 18, 2024

For Immediate Release

U.S. Attorney's Office, District of
Massachusetts

BOSTON – The former Senior Manager of Special Operations for eBay's Global Security Team was sentenced today in federal court in Boston for his role in a cyberstalking campaign targeting a Massachusetts couple. The defendant and his co-conspirators harassed and intimidated the victims in retaliation for their publication of an industry newsletter that eBay executives viewed as critical of the company.

Brian Gilbert, 56, of San Jose, Calif., was sentenced by U.S. Senior District Court Judge William G. Young to time served, one year of supervised release with the special condition that he have no contact with either of the victims in the case and a \$20,000 fine. [In October 2020](#), Gilbert pleaded guilty to conspiracy to commit cyberstalking and conspiracy to tamper with witnesses.

Gilbert is one of seven now-former eBay employees and contractors on the company's security team who were charged and ultimately convicted for their roles in the cyberstalking campaign:

- [Jim Baugh](#), eBay's former Senior Director of Safety and Security, was sentenced to 57 months in prison in September 2022;
- [David Harville](#), former Director of Global Resiliency, was sentenced to 24 months in prison in September 2022;
- [Stephanie Popp](#), former Senior Manager of Global Intelligence, was sentenced to 12 months in prison in October 2022;

- [Philip Cooke](#), a former Senior Manager of Security Operations, was sentenced to 18 months in prison and 12 months of home confinement in July 2021;
- [Stephanie Stockwell](#), a former Manager of Global Intelligence, was sentenced to one year in home confinement in October 2022; and
- [Veronica Zea](#), a contract intelligence analyst, was sentenced to one year in home confinement in November 2022.

“Today’s sentencing brings an end to our prosecution of eBay’s horrific conduct. The company’s culture resulted in seven eBay employees and contractors inflicting an unspeakable campaign of harassment and intimidation against the victims in this case, all to silence their reporting and protect the eBay brand,” said Acting United States Attorney Joshua S. Levy. “We left no stone unturned to hold accountable every individual who engaged in criminal conduct, including the ringleader, who was sentenced to 57 months in federal prison. We also charged eBay criminally and required it to pay \$3 million—the maximum fine allowed by law. The charges against eBay will only be dismissed if eBay commits no crimes over the next three years and satisfies both my office and an independent monitor that compliance with the law is paramount, starting with the C-Suite all the way down to the newest hire. This series of prosecutions should ensure that every eBay employee understands that the idea of terrorizing innocent people and obstructing investigations will never again be tolerated.”

“No sentence can ever make up for the devastating and irreversible impact Brian Gilbert’s actions had on the victims in this case. As a former law enforcement officer, Mr. Gilbert should have stepped in and stopped this unprecedented, relentless, and over-the-top harassment campaign that he and others at eBay orchestrated to try and protect their company’s reputation,” said Jodi Cohen, Special Agent in Charge of the Federal Bureau of Investigation Boston Division. “Anyone who thinks they can terrorize innocent people, obstruct investigations, and get away with it can expect to be brought to justice to face similar consequences.”

In August 2019, the defendants executed a three-part harassment campaign against the Natick, Mass. couple. Among other things, several of the defendants ordered anonymous and disturbing deliveries to the victims' home, including a preserved fetal pig, a bloody pig Halloween mask and a book on surviving the loss of a spouse.



A bloody pig Halloween mask and a book on surviving the loss of a spouse that were sent to the victims' home.

As part of the second phase of the campaign, some of the defendants sent private Twitter messages and public tweets criticizing the newsletter's content and threatening to visit the victims in Natick. Gilbert, Cooke, Baugh and Popp planned for these messages to become increasingly disturbing, culminating with "doxing" the victims (i.e., publishing their home address). The same group intended then to have Gilbert, a former Santa Clara police captain, approach the victims with an offer to help stop the harassment that the defendants were secretly causing, in an effort to promote good will towards eBay.

The third phase of the campaign involved surveilling the victims in their home and community. The victims spotted the surveillance, however, and notified the Natick Police, who began to investigate.

Aware that the police were investigating, the defendants sought to interfere with the investigation. For example, several of the defendants discussed the possibility of presenting Natick Police with a false investigative lead to keep the police from discovering video evidence that could link some of the deliveries to eBay employees. As the police and eBay's lawyers continued to investigate, the defendants deleted digital evidence that showed their involvement, further obstructing what had by then become a federal investigation.

[In January 2024](https://www.justice.gov/usao-ma/pr/final-defendant-ebay-cyberstalking-case-sentenced), eBay was charged criminally with two counts of stalking through interstate

travel, two counts of stalking through electronic communications services, one count of witness tampering and one count of obstruction of justice. eBay entered into a [deferred prosecution agreement and](#) admitted to a detailed recitation of all the relevant facts about its conduct and agreed to pay a criminal penalty of \$3 million, which is the statutory maximum fine for these six felony offenses. As part of this resolution, eBay was required to retain an independent corporate compliance monitor for a period of three years and to make extensive enhancements to its compliance program.

Acting U.S. Attorney Levy and FBI SAC Jodi Cohen made the announcement today. Valuable investigative assistance was provided by the Natick Police Department. Assistant U.S. Attorney Seth B. Kosto, Deputy Chief of the Securities, Financial & Cyber Fraud Unit prosecuted the case.

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